

HOUSE No. 3367

The Commonwealth of Massachusetts

PRESENTED BY:

Patrick Joseph Kearney

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to procure public products or services from Massachusetts or the United States.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>1/7/2025</i>

HOUSE No. 3367

By Representative Kearney of Scituate, a petition (accompanied by bill, House, No. 3367) of Patrick Joseph Kearney for legislation to procure public products or services from businesses in Massachusetts or the United States. State Administration and Regulatory Oversight.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 3068 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to procure public products or services from Massachusetts or the United States.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 7 of the General Laws is hereby amended by striking out section 22O, as
2 appearing in the 2020 Official Edition, and inserting in place thereof the following section:-

3 Section 22O. Notwithstanding any general or special law to the contrary relating to
4 procurement, and to the extent permitted by federal law, a state agency or authority shall procure
5 products or services from businesses, as defined in section 3A of chapter 23A, with their
6 principal place of business in the commonwealth when available, provided that the same
7 products or serves are not available for 10% less in cost out of the commonwealth. When
8 products or services are not available in the commonwealth, they must be made from businesses
9 within the United States, provided that the same products or serves are not available for 10% less
10 out of United States. When products or services are not available within the United States, then

11 foreign purchases are permissible. In addition, the operational services division shall endeavor to
12 ensure that in any fiscal year no less than 15 per cent of statewide procurement contracts are
13 entered into with businesses, as so defined, which: (i) are independently owned and operated; (ii)
14 have a principal place of business in the commonwealth; (iii) have been in business for at least 1
15 year; and (iv) are defined as a small business under applicable federal law or are defined by the
16 division as small businesses pursuant to the small business purchasing program.